

DISSENTING OPINION BY M. HERMANN-OTAVSKÝ.

[*Translation.*]

Being unable to concur in the judgment given by the Court on the appeal lodged by the Czechoslovak Government against the judgment of the Hungaro-Czechoslovak Mixed Arbitral Tribunal (the Peter Pázmány University *v.* the State of Czechoslovakia), I have the honour, in accordance with Article 57 of the Statute, to deliver a separate opinion.

This opinion relates mainly to the question of the ownership of the estates in issue, in conjunction with that of the nature of the University Fund, and also to questions as to the applicability of Article 250 of the Treaty of Trianon in this case from the point of view of the character both of the estates and of the measures referred to in that Article.

A.—THE OWNERSHIP OF THE ESTATES IN ISSUE. THE UNIVERSITY FUND.

Two theories have to be considered:

1. That the owner is the University.
2. That the owner is the University Fund¹ as a juridical person distinct from the University.

I do not consider that direct proof, eliminating any doubt, has been furnished in respect of either theory.

It is true that strong indications are to be found more particularly in the series of historical instruments beginning with Cardinal Peter Pázmány's Deed of May 12th, 1635, founding the University, and including, in addition to the Charter of Ferdinand II, in particular the Deeds of Queen Maria Theresa and her successors down to and including King Francis I.

There are instruments relating to donations of estates to the University or to the installation of the University in the ownership and possession of estates: These might doubtless be accepted as proof, or at all events as an indication, that the University acquired the estates, if they were not weakened—one might even say counter-balanced—by clauses and passages in their text which rather tend to support the second theory (ownership of the Fund).

It must no doubt also be borne in mind that the historical documents are not always accurately worded and that they

¹ It is also described as Fund of the Royal Hungarian University, or Fund of the University, or Royal Hungarian University Fund.

sometimes contain vague phrases and expressions. Moreover, their Latin is not the classical Latin of Roman Law, and they often use ambiguous terms not corresponding to clearly defined legal conceptions.

A case in point is that the terms "property" and "*dominium*" are very often used in a very wide sense. Even in the legal terminology of the present day, we find traces of this looseness and ambiguity in the use of these terms: for instance, the Austrian Civil Code of 1811 speaks also of debts as property; in modern doctrine one also speaks of literary and artistic property, of industrial property, of electric power as property, also of space as property, and even quite recently of wireless transmissions as property, though in none of these instances do we find the characteristic features of the law of property in the strict classical legal sense.

Moreover, the same historical documents, in which the terms "property" or "*dominium*", as also "*donatio*", "*donum*", "*dos*", "*dotatio*", "*habere*", etc., appear to refer to ownership of property in the true sense or at least to a "real" right in respect of the property, also describe the property in question as "*fundatio*" and the deeds respecting it as "*litterae fundationales*"; again, the donations made in these instruments are, according to the formulæ in use in donations, for the most part expressly described as made "*titulo dotis et fundationis perpetuae*", and it is often expressly stated that only the interest on the sums given and the revenue of the estates are to be devoted to the maintenance of persons entrusted with teaching at the University and to meet the requirements of that institution. Having regard to these clauses, it is, in my opinion, very difficult to avoid the impression that the value of the documents as evidence supporting the theory that ownership belongs to the University is, if not entirely destroyed, at all events very much weakened¹.

¹ The most significant clauses in several of the historical documents from the point of view of the theory that the University Fund is a juridical person are as follows:

(a) The Deed of Foundation (Counter-Case, p. 93) of Cardinal Peter Pázmány: ".... Hanc igitur summam, volumus imprimis ita Societas applicet, ut ex fructibus illius summae, et collegii cum Scholis aedificatio a fundamentis acceleratur, et Professores necessarii sustententur."—".... liberum sit Societati hanc nostram *fundationem*, una cum Universitate, alio transferre....".

(b) The Deed regarding the bequests made by E. Lósy and G. Lippay (Counter-Case, pp. 105 *et seq.*): "Pro *fundatione* studii Juris Tynaviae in Academia lego Quindecim milia florenorum; *alantur* Doctores Juris civilis unus, Juris canonici alter" (with other detailed provisions).—Page 106: ".... Quinque milia florenos pleno jure Domini et cum effectu possidendos assignavimus, *fundationique Academicae Pasmanianae addiciendos* et incorporandos declaravimus."—Page 107: "Quod si vero contingeret Societatem et Academiam

However, it is clear that this would not suffice to establish the soundness of the second contention, which maintains the existence of the "University Fund", as a person in law and as owner of the property in question. Before this conception could be entertained, one would require to have, in support of it, other evidence, in addition to that which is based on historical documents. Are there any facts furnishing such evidence in this case? I answer, yes; for there are several:

(a) To begin with, there is the economic aim, which both the original founder, and the subsequent founders who supplemented or augmented the earlier foundations or endowments, may be presumed to have had in view.

What was the goal at which those persons aimed? Undoubtedly it was, by means of their endowments or foundations, to ensure certain permanent economic results, based on a settled income—results which would be exempt from any arbitrary action by private persons, whether the original donees, their successors or the temporary beneficiaries. But

e Regno Hungariae exesse, tunc haec *fundatio* canonisticae Lectionis, ut *pars adjecta Academiae Pazmanianae fundationi* transferri e Hungaria non poterit."

(c) The Deed of Donation of Queen Maria Theresa of 1769 (p. 111): "... Abbatiam quoque S. Helenae de Foldvar memoratae Tyrnaviensi Universitati *Titulo perpetuae dotis et fundationis* Nostrae dandam et conferendam esse duximus."—".... presentes Literas nostras *fundationales*...."

(d) The Deed of Donation of Queen Maria Theresa of 1775 (p. 115): The same repeated reference to the "*Titulus*" as in the previous Deed.—Page 116: "benignis Donationalibus, et respective *Fundationalibus* Literis nostris". See also page 120.

(e) The letters patent inaugurating the University in 1780. Page 123: "Cum autem haec omnia ex Fundo praehabitate Dotis perfici nequirent, ultro etiam Abbatiam S. Helenae eidem Universitati Tyrnaviensi, *titulo perpetuae Dotis et Fundationis praehabito ejusdem Fundo*, vigore Donationis clementer adjecimus."—Page 124: ".... Universitati Regiae vigore alterius Donationis et *Fundationis* Jure perpetuae Donationis et *Fundationis* contulimus."—Page 134: ".... titulo *perpetuae* Dotis, et *fundationis* cum omni jure Regio donamus et conferimus".—Page 138: "titulo Dotis et fundationis perpetuae clementer damus, donamus et conferimus".—Page 139: "Literas Donacionales et Fundationales."

(f) *Ratio Educationis Publicae* (1806). *Caput I*: "De fundo Universitatis Regiae". Ex § 279: ".... Maria Theresia Universitatem firmiter fundare voluit, dum eidem fundos et redditus tribuit amplissimos Idcirco omnem *fundi hujus procuracionem* moderatur Consilium Regium."

(g) Instruction to Prefects and Inspectors of the estates and domains: "omnia bonorum Dominiorumque ac Realitatum tam ad *fundum* Litterarium, — *Universitatis* et Convictuum, quam ad fundum Religionis et fundationes Saeculares pertinentiam visitationem accipiat".

(h) The Deed of New Donation of Francis I (1804). Page 146: ".... una cum capitalibus fundi Universitatis penes Aerarium nostrum elocatis"; "Ratio quoque commodioris Bonorum *utriusque fundi administrationis*".—Page 148: "Titulo novae Donationis *perpetuaeque Dotis et fundationis*."

(i) Order of investiture and installation of King Francis I (1804). Page 152: "ex fundationis vigore aliarum Literarumstrarum".

those economic results would not be secured by means of a simple donation—even if conditioned by a *modus*—which did not provide any special protection for the capital; nor would it be secured by making the donation in favour of the actual beneficiaries, since the latter, like the donees, would not, in all circumstances, be the best custodians and administrators of the capital.

The above-mentioned economic (and social) object could, however, be secured by the creation of a foundation which—being administered and represented by public authorities—could best guarantee the intangibility of the capital, by placing it beyond the reach of any action, whether by the donees or the beneficiaries. The independence thus provided is the most important feature of a “perpetual foundation”: it renders the capital immune from any prejudicial action by the persons referred to above, who might easily be tempted to abuse their rights, to the detriment both of the capital itself, and of the social and economic aims of the foundation, as contemplated by the founder.

Certainly, one must not ignore the objection that foundations of this kind were not yet known at the period in question: but it suffices to point out that, at that time, public funds, in the nature of persons in law, had long existed in Hungary; as examples may be cited the “*Cassa parochorum*” (later, the Religious Fund) and the *Fundus Studiorum*, which were undeniably “*universitates bonorum*”.

It may also be objected that the founders were probably far from contemplating the creation of a foundation having an independent personality in law, and that a more or less abstract legal conception never formed part of their intention, and was not present in their mind. To this it must be answered that the deliberate action of a private person, capable of disposing of property under the law, produces its legal effects even if those effects were not present in the person's mind: if the legal effects which attach to the given act, under the country's laws, are calculated to fulfil the economic or social purpose of the person thus acting, that is sufficient. Even if the founders had no clear idea of the legal characteristics of what they were founding, one may nevertheless admit the possibility that they brought into being the legal entity which corresponds, in its essential features, to the economic and social objects that the founder had in view. The legal form which, in this case, best corresponds to the intention of the founders, was that of a juridical person, independent of the donees and beneficiaries, and subject to public supervision and control, thus fully safeguarding the attainment of the founders' objects.

(b) Furthermore, the examples of the *Fundus Studiorum* and the Religious Fund, in regard to the legal character of which no doubt exists, may be cited in favour of the theory that the University Fund is a juridical person.

(c) Remarkable evidence in favour of the theory that the University Fund is a juridical person is available in the entries in the land registers relating to the property in dispute: Nearly all the estates concerned are entered in those registers as the property of the University Fund. It has been explained, on behalf of the Hungarian Government, that these entries are to be ascribed to mistakes or inaccuracies on the part of the officials in charge of the registers. However, in view of the statutory regulations to ensure accuracy in the descriptions of the owners given in the registers, it is more reasonable to suppose that the entries showing the University Fund as the owner were made in accordance with the information given to the officials, whose duty it was to ascertain and record the owners' names, and that it is, more probably, the use of the term "University" which may be attributable to mistakes or inaccuracy; nor should it be forgotten that to describe the owner simply as the University is the method that would appear most natural to the lay mind, whereas the description of the owner as the University Fund involves a more technical and abstract process of thought.

(d) Another indication, of some value, supporting the view that the University Fund is a juridical person, is the fact that the said Fund has quite frequently appeared as a Party to contracts, even in cases where Royal approval was required. As examples may be cited the contract of sale in which the Royal Board of Public Foundations appears as "the legal representative of the Royal Hungarian University, the purchaser"; in the Royal approval, given under the hand of King Francis Joseph, on March 11th, 1914, it is stated: "We consent to the purchase for the benefit of the University Fund....". (Cf. Annex XXVIII of the Counter-Case, documents Nos. 12 and 13.)

(e) Finally, we must also take into account the acceptance of the University Fund as a juridical person in Hungarian official, and especially in Hungarian parliamentary, circles, as well as in a portion of the literature and even the jurisprudence of Hungary; here we have important evidence in support of the above-mentioned theory, and, so far as I can see, it has not been shaken by the respondent Party's objections.

After considering all these facts and indications, I have gained the impression that, when the term University Fund

is used, it is not merely employed as a synonym for the University¹, but that the University Fund—in the same way as the *Fundus Studiorum* and the Religious Fund—has the character of a separate juridical personality, and must be regarded as the owner of the property in dispute, at all events in so far as a special title cannot be produced proving that the University itself acquired a given estate.

B.—THE APPLICABILITY OF ARTICLE 250 OF THE TREATY OF TRIANON.

I.—*The general character of Article 250.*

The first paragraph of Article 250 runs as follows:

“Notwithstanding the provisions of Article 232 and the Annex to Section IV, the property, rights and interests of Hungarian nationals or companies controlled by them situated in the territories which formed part of the former Austro-Hungarian Monarchy shall not be subject to retention or liquidation in accordance with these provisions.”

What is the significance of the first words of this clause: “Notwithstanding the provisions of Article 232 and the Annex to Section IV”? The answer is, surely, that Article 250 constitutes a reservation or an exception to the terms of Article 232. Article 232, paragraph (b), declares that the measures in question are admissible in the case of *private* property, rights and interests, and that this is “*the principle laid down in this Section*”, as is specifically stated in the preamble of the first paragraph of Article 232.

It is no doubt true that the principle thus laid down in Article 232, (b), is deprived of any practical significance, so far as Czechoslovakia is concerned, by the terms of Article 250. Nevertheless, the principle stands, as expressed in the Treaty (Art. 232, b); it cannot be regarded as non-existent, or as never having been stated. On the contrary, it has been and continues to be stated, and its existence determines the character of Article 250, as an excepting clause, and therefore requiring, as such, to be construed with the utmost strictness.

It follows that the excepting clause in Article 250 only provides for the protection of *private* property rights and interests against the measures in question.

However, account must also be taken of paragraph 4 of Article 250, which excludes the property enumerated in Article 191 from the protection afforded by paragraph 1 of

¹ Of course, it is not impossible that the terms in question have been wrongly or inaccurately used; but it is impossible to assume that the same meaning attaches to two names which in themselves refer to entirely different things or institutions.

Article 250: that is to say, it excludes the property of the former Kingdom of Hungary, and the interests of that Kingdom in the joint property of the Austro-Hungarian Monarchy, as well as the property of the Crown and the private property of members of the former Royal Family of Austria-Hungary.

The insertion of the above-mentioned paragraph in Article 250 may be interpreted in different ways; for example, it has been inferred from the said paragraph, on the principle of *a contrario*, that all property which is not directly allotted to Czechoslovakia by the terms of Article 191 is protected by Article 250. But there is no justification here for such an argument *a contrario*; paragraph 4 does not aim at giving an enumeration of the properties which are excluded from protection; it would not even be logical to exclude them, since the properties in question are of that category which falls *ipso jure* to the Czechoslovak State, and in respect of which the question of measures, within the meaning of Article 250, could not even arise.

The insertion of this fourth paragraph—which might appear superfluous from this point of view—is attributable to the existence of the private property of the dynasty mentioned in Article 191; it is due to the desire to avoid all semblance of contradiction between Article 191 and Article 250, paragraph 1; it is perhaps also due to the desire to bar any recourse to the jurisdiction laid down in the immediately preceding paragraph, in the event of conflicts of interests arising in this connection.

The impossibility of founding any argument *a contrario* on paragraph 4 of the said Article is also made clear by Article 256, which reveals the existence of other kinds of property, which do not come under Article 250, besides those referred to in Article 191.

It is therefore legitimate to conclude that property which is not private, within the meaning of Article 250, or of Article 232, is not entitled to the protection accorded by the first paragraph of Article 250.

II.—*The character of "non-private" property.*

1.—In discussing the ownership of the property in dispute, I concluded in favour of the view that the owner was the University Fund. Passing on, now, to the question of the character of the property, as a condition for the applicability of Article 250, in other words, having now to examine its character as private property, I shall not confine my examination to the estates that are regarded as the property of the

University Fund; on the contrary, I desire to extend it so as to cover any property which is regarded as belonging to the University itself.

The assumption that the University is the owner of the estates—which implies the assumption that it is a person in law—makes it necessary also to examine the University's legal character, at any rate on broad lines.

In regard to this point I find no difficulty in accepting the view that the University—supposing it to have the status of a person in law—is an institution, or establishment, *sui generis*, possessing a *mixed* character. Its origin, its creation, its autonomy (in spite of various restrictions) characterize it as a “civil” person, a person in *private law*; whereas its functions, its duties, the mission entrusted to it by the State—that is the mission of imparting higher education, which implies the exercise and carrying out of a *very important part of the public administration*—that mission, I say, invests it with the character of a *public institution*.

2.—The question to be answered is therefore as follows:

Are the estates in dispute (whether belonging to the University or to the University Fund), or are they not, private property, for the purposes of Article 250 or of Article 232?

It is not sound, in my opinion, to ask whether the estates are private property, or “public” property. Article 250 makes no mention of public property, and it only alludes to private property by a reference to Article 232 and to the Annex to Section IV.

The conceptions of private and public property are not, moreover, generally speaking, contradictory conceptions; there may be cases in which property cannot be described as private though it is impossible to say that it is purely public in character. It is advisable therefore simply to enquire whether, in a given case, property is “private” or “non-private”, within the meaning of Article 250.

I hold that the property in issue is “non-private”, no matter whether it belongs to the University or to the University Fund. I consider that the property derives this character from the following circumstances:

(a) The purpose to which the property is devoted.

In my view the character of property as private or otherwise cannot be judged purely by reference to the original source whence it is obtained; property originally private can easily become non-private and, on the other hand, non-private property may, e.g. by alienation, pass into private hands and become devoted to private purposes. It follows that only

the *present purpose* must be taken into account in deciding whether the property is private or otherwise.

And what is the present purpose to which the property in question is devoted? Either directly, or through the University Fund, it is devoted to the upkeep of the University as a higher educational institution, that is as a public institution.

(b) The special very strict and close supervision and the administration of this property by the State; this supervision and administration were entrusted to the Royal Hungarian Board of Public Foundations, a department under the Ministry of Worship and Public Education.

(c) The fact that this supervision and this administration were in the hands of public officials belonging either to the foundations or to the State. (See Annexes I/1-3 to the Counter-Case.)

(d) The fact that the property could only be disposed of with the King's consent, or that of the Minister acting in his name and by special authority, and that this consent is a condition attached to the original grant of the property and that the validity of any disposal of the property is dependent upon it. This appears from the text of the royal approval (see Document 13 in Annex XXVIII to the Counter-Case) which authorizes the Minister to confirm the contract which is specified in the royal approval. The text of the contract (*ibid.*, Document No. 12) shows that the date of confirmation governs the date of execution of the mutual undertakings (see Nos. 4, 6, 7, 8 and 12 in the text).

The solemn form of the royal approval and authorization to the Minister to confirm the contract and the phrase included in the contract itself ("in accordance with the supreme authority of His Imperial and Royal Apostolic Majesty, subject to the express approval of the Royal Hungarian Minister of Worship and Public Education") suffice to show that the property in question is not "private" property in the ordinary sense, but property the importance of which for the public interest necessitates extraordinary and special treatment.

III.—*The measures in question and Article 250.*

The right of retention and liquidation mentioned in Article 232 (b) is granted to the Allied and Associated Powers for a purpose which is strictly defined and regulated by various provisions contained, *inter alia*, in Section IV, Part X, of the Treaty: the purpose is reparations or economic elimination. The same

holds good in respect of the measures prohibited by Article 250, paragraph 1. Furthermore, as regards measures falling under Article 250, a distinctive feature, namely their discriminatory character, ensues from their very nature, i.e. in this case the measure falls upon the property because it is the property of Hungarian nationals, and only by reason of this characteristic of its owner. This distinctive character has been recognized by the Permanent Court of International Justice which, in its Judgment No. 7 (p. 32), says that it in no way denies that the liquidation régime established by the Treaty of Versailles applies "to German private property as such".

This discriminatory character does not attach to the measures in the present case; in this case the measures (retention, sequestration or compulsory administration) have another character which is the outcome of the circumstances in which they were taken. Czechoslovakia occupied her new territory; in it there were estates administered by Hungarian public officials, either employees of the Royal Hungarian Board of Public Foundations or of the State, that is to say by persons bound by an oath of fidelity to the State of Hungary.

Was it possible to let this state of affairs continue under the new régime, after the establishment of the new territorial sovereign? There can be no doubt that it was impossible to do so. It was absolutely necessary, it was essential to replace the foreign public administration by a domestic public administration. This change of administration would also have been necessary if the foreigners concerned had been other than Hungarians and it was not directed against Hungarian officials or interests, *because they were Hungarian and as being Hungarian*. Accordingly, the measure was not discriminatory in the sense indicated above.

The principle that a foreign public administration cannot be allowed to function in a State's own territory might also have been applied, if circumstances had required it, in respect of the public officials even of an allied or associated State, for instance Poland or Roumania; though of course the matter could probably have been at once settled by means of an agreement. But in the present case, the relations between the two States concerned were not favourable to an agreement at that period.

It is a cardinal principle of ordinary international law¹ that the exercise of public administrative functions by foreigners in a State's own territory is forbidden; moreover, the same

¹ Cf. the teachings of the following: Verdross, *Die Verfassung der Völkerrechtsgemeinschaft* (1926). Page 183: "Wie schon ausgeführt wurde, ist das Festland nach allgemeinem Völkerrechte grundsätzlich in der Weise aufgeteilt,

principle also holds good in private international law as regards the administration of real estate under guardianship situated in one country by a guardian appointed by another State. Both the Austrian Civil Code (§ 225) and Hungarian law (Art. XX/1877) adopt the principle that a guardian appointed by a foreign State is not allowed, and that a special guardian belonging to the country must be appointed for such real estate¹. It follows, *a fortiori*, that a foreign public authority administering real estate in a country must be replaced by the domestic public authorities.

dass auf einem bestimmten Gebiete regelmässig nur der Territorialstaat zur Setzung von Staatsakten zuständig ist."—Page 186: "Der Grundsatz, dass nur der Territorialstaat auf seinem Staatsgebiete zur Setzung von Staatsakten zuständig ist, erfährt schon nach allgemeinem Völkerrechte einige Durchbrechungen." (Then follows an explanation concerning the exception to this principle, more particularly from the point of view of extraterritoriality and international conventions.) — Santi Romano, *Corso di Diritto internazionale* (3. ediz., 1933). Page 163: "Nel suo aspetto negativo, la potestà territoriale abbraccia: 1) 2) la potestà di escludere che nel territorio abbiano efficacia ordinamenti ed atti singoli di altri soggetti di diritto internazionale. Tranne casi eccezionali, di cui si farà parola in seguito, nessun soggetto, al infuori dello Stato cui spetta il territorio, può di sua autorità far valere in questo le proprie norme, le proprie istituzioni, i propri provvedimenti. A temperare il principio dell'assoluta territorialità del diritto statale, sono di regola ammessi e riconosciuti da ogni Stato anche ordinamenti e potestà stranieri, ma è sempre lo Stato da cui dipende il territorio di cui si tratta, che deve disporre della loro efficacia, che perciò non è mai diretta, ma si esplica soltanto per effetto e nei limiti di siffatta disposizione." — Arrigo Cavaglieri, *Corso di Diritto internazionale* (2. ediz., 1932). Page 206: "Ma la limitazione della sfera della sua sovranità territoriale, determinata dalla coesistenza di altre sfere analoghe alla sua, vieta allo Stato di perseguire coi suoi propri mezzi l'individuo all'estero, di estendervi l'attività dei suoi organi, di farvi valere il peso della sua potestà. Oltre i confini del territorio la potestà si estingue per essere sostituita da quella di altri Stati, altrettanto piena ed esclusiva. Salvo il caso che tra due Stati siano intervenuti speciali accordi (p. e. in materia di estradizione), i comandi del primo ad individui, trovandosi sul territorio del secondo, sono inesigibili, in forza della reciproca indipendenza degli Stati."

¹ Zitelmann (*Internationales Privatrecht*, 1912, Vol. 2, p. 921) says in regard to this: "Jeder Staat kann demnach auch — um die Worte des Einführungsgesetzes zu verwenden — „mit Wirkung für (alle) diejenigen Rechtsverhältnisse, welche sich nach den Gesetzen dieses Staates bestimmen, sowie mit Wirkung für das im Gebiet dieses Staates befindliche Vermögen“ eine Sondervormundschaft einrichten: es werden dann eben alle die Vermögensstücke, die der Herrschaft dieses Staates unterliegen, von dem Gesamtvermögen, insofern es Gegenstand einer einheitlichen Vormundschaft des Heimatstaates sein sollte, ausgenommen und zu einem Sondervermögen zusammengeschlossen, das dann einer besonderen Vormundschaft unterstellt wird. Z. B. bleibt es mit den internationalrechtlichen Grundsätzen, wie sie vom Standpunkte des Völkerrechts aus gefordert sind, in Einklang, wenn eine Rechtsordnung (vgl. österreichisches bürgerl. G. B. § 225) die im Inland belegenen Grundstücke dem Recht des auswärts bestellten Vormunds entzieht und eine besondere Vormundschaft für sie erfordert, oder sogar, wenn, wie das die ältere englische Praxis des Common Law und noch die jetzige nordamerikanische Praxis tut, auswärtigen Vormündern für das im Inlande gelegene Vermögen die Vertretungsbefugnis überhaupt verweigert wird."

To summarize: The measures in question were rendered necessary by the situation resulting from the extension of Czechoslovak sovereignty over the new territories. They are not discriminatory; they have a definite purpose and are in the nature of protective measures; their purpose is to provide for the administration of the property; the latter is not confiscated—not even its revenues: this fact must be emphasized in view of the contrary assertions so often made by the claimant Party.

(Signed) KAREL HERMANN-OTAVSKÝ.